

26STCV10650 26STCV10650

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-31

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Case Number: 26STCV10650 Hearing Date: July 31, 2026 Dept: 9

The Court has received a notice of related cases filed on 7/24/26.

CRC 3.300(h)(A) controls, and the complex department with the earliest case determines whether the cases are related.

The notice of related cases is GRANTED. The Court finds that Case No. 26STCV10650 and 26STCV18348 are related cases. One is a class action wage and hour case, and the other a PAGA-only case. Both cases name the same Defendant and same representative/named Plaintiff.

Case No. 26STCV18348 is ordered transferred to Department 9. The lead case is 26STCV10650.

A status conference is set in 26STCV18348 for today's date to be heard concurrently with the initial status conference set for today's date in Case No. 26STCV10650. All other dates in 26STCV18348 are advanced and vacated.

The Court reminds the parties that at this juncture, the cases have only been related and have not been consolidated. Accordingly, any stipulation, joint status report or other document that applies to more than one related case must be separately filed multiple times – once in each related case; it will not suffice to file such document only in one case, such as the lead case.

The Judicial Assistant is to give notice to the Moving Party who filed the notice of related cases, and the Moving Party is ordered to give further and formal notice to all parties in all cases that are listed in the notice of related cases and file proof of service of such.

The Court hereby

distributes a tentative ruling for the Case Management Order. The parties are welcome to provide input and

propose modification(s) to any aspect of the CMO at the Initial Status

Conference. If all parties submit on the

tentative CMO prior to the commencement of the July 31, 2026 ISC, the Court

will adopt the tentative CMO, and the parties need not appear. However, if there is any matter that any

party would like to discuss, including any proposed change to this tentative

CMO, that party should not submit on this tentative but instead appear at the

ISC to raise the issue. To avoid a

failure to appear, please make sure to check in with Department 9 court staff

and wait for the case to be called unless you receive notification that all

parties have submitted on the tentative CMO.

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

CLEMENTE

MORALES vs GGIATA RESTAURANT GROUP LLC, 26STCV10650

and

CLEMENTE

MORALES vs GGIATA RESTAURANT GROUP LLC, 26STCV18348

[TENTATIVE] CASE MANAGEMENT

ORDER

This action has been designated as

complex pursuant to CRC 3.400(a), and thus requires exceptional judicial management. All provisions of this CMO are deemed necessary to carry out the purposes of Rule 3.400(a), and to promote effective decision-making by the Court. They are based upon individual consideration of this complex action, including the Status Conference Reports previously filed by the parties.

1.

Granting of Pending Notice of Related Cases: The notice of related cases filed 7/24/26 is

GRANTED. The Court finds that Case No.

26STCV10650 and 26STCV18348 are related cases.

Case No. 26STCV18348 is ordered transferred to Department 9. The lead case is 26STCV10650. A status conference is set in 26STCV18348 for

today's date to be heard concurrently with the initial status conference set

for today's date in Case No. 26STCV10650.

All other dates in 26STCV18348 are advanced and vacated. The Court reminds the parties that at this

juncture, the cases have only been related and have not been consolidated. Accordingly, any stipulation, joint status

report or other document that applies to more than one related case must be

separately filed multiple times – once in each related case; it will not

suffice to file such document only in one case, such as the lead case.

2.

Mediation: The

parties advised at today's ISC that they have scheduled a mediation to occur on

January 26, 2027. The parties are ordered

to file a Joint Status Report Re: Mediation Efforts by no later than February

25, 2027. A Status Conference Re

Mediation Efforts is set for March 4, 2027 at 10:00 AM, Department

9. The Court encourages (but does not

require or order) the parties to include a custodian's declaration with each

production of discovery so that if the mediation is unsuccessful, the parties

will have declarations to authenticate the documents already produced.

3.

Applicable Arbitration Agreement(s): The Parties are

unaware of any relevant arbitration agreements and/or class action waiver

clauses.

4.

Defendant's Responsive Pleading: The Court hereby

lifts the stay to permit Defendant to file and serve a Responsive Pleading to

the operative Complaint. Defendant has already answered in 26STCV18348. For 26STCV10650, Defendant must file and

serve a Responsive Pleading by no later than August 31, 2026. Before filing any motion, the moving party must

contact the Court Staff in Department 9 when ready to file the moving papers to

obtain a hearing date and a briefing schedule.

The Court sets a Non-Appearance Case Review Re: Filing and Serving of

Defendant's Responsive Pleading for September 8, 2026, 8:30 AM,

Department 9.

5.

Phased Discovery. Discovery

shall be phased. Discovery will be

phased with the stay lifted once Defendant files and serves an answer or, if

applicable, after the Court rules on any pleading challenge. At that time, the

Court will permit class certification discovery only. Merits-based

discovery will be allowed only after the Court rules on Plaintiff's anticipated

class certification motion. If there is a dispute concerning whether a given

discovery request is certification or merits-based, the parties are to request

an informal discovery conference through CaseAnywhere or other electronic

bulletin.

6.

Class list discovery.

The decision in *In Re Insurance Installment Fee* cases (2012) 211

Cal.App.4th 1395, 1426-1429, held that the notice procedure prescribed by the

trial court and followed by the defendant was necessary to protect privacy

rights under the California Constitution.

Therefore, upon the Court's lifting of the stay on class certification

discovery, the parties shall use the procedure described in *Belaire-West*

Landscape v Superior Court (2008) 149 Cal.App.4th 554 to notify putative

class members, as described in the applicable paragraph of the currently

operative complaint, giving them the opportunity to opt out. The parties must share the cost of the

procedure equally.

a. Plaintiff

is to take the lead and prepare a proposed letter to be sent out by the

agreed-upon third party administrator.

The parties must discuss and settle upon a final version.

b. The

letter must be written using the administrator's letterhead, not that of any

party.

c. The

defense must turn over the contact information consisting of name, address,

phone number, and email address (if available) to the third-party

administrator.

d. In the

event the putative class list is greater than 400 people, the administrator

must randomly select a sample of no more than 400. The contact information for those persons

who did not opt out must be turned over to the plaintiff.

7.

Payroll Records Discovery. Responses to any

payroll record discovery requests must be uniquely numbered and redacted so

that putative class member's identifying information, i.e., name, social

security numbers, etc. are not revealed.

8.

Protective Order.

Parties are alerted that model protective orders may be found at Los

Angeles Superior Court website at <http://www.lacourt.org/division/civil/CI0043.aspx>. The parties are encouraged to use these model

orders as shown, or if modified, as a template for the modified order. A redlined courtesy copy must be posted on

the e-service bulletin board and lodged with the court at the time of filing.

The parties must use the redlined version to identify any changes proposed to

the model order.

9.

E-service & E-filing. Electronic service is not the same as

electronic filing. The parties have

agreed, and the Court has signed an order authorizing Case Anywhere as the

e-service to be used in this case.

Argument must not be posted on the bulletin board. For information on electronic filing in the

Complex Courts, please refer to <https://www.lacourt.org/division/efiling/efiling2.aspx> and <http://www.lacourt.org/division/efiling/pdf/ComplexefilingFAQs.pdf>.

a. The

parties should be aware that if they submit a proposed order, then if and when

the Court approves the order, the final signed order will be electronically

returned to the Electronic Filing Service Provider (EFSP). After lodging a proposed order, the parties

must frequently monitor and check with their EFSP because the final, signed

order will not be automatically uploaded to CaseAnywhere or any other

electronic bulletin board.

10.

Hearing Dates and Briefing Schedule for Motions: Department 9 does not use the Los Angeles

Superior Court online Court Reservation System (CRS) to set motion hearing

dates. To request a hearing date and

briefing schedule for any and all motions (other than motions in limine), the

moving party must call the Court Staff in Department 9 when ready to file the

moving papers. The first page of the Notice

of Motion must clearly set forth the hearing date and briefing schedule obtained

from the Court. Failure to file and

serve moving papers within 1 court day of obtaining the briefing schedule and

hearing date may result in the Court vacating the hearing date. At the trial setting conference, the Court

will specially set a briefing schedule for all motions in limine, which are

generally heard at the Final Status Conference.

11.

Class Certification Motion. If the matter does not successfully resolve

at the January 26, 2027 mediation, the parties are to address their respective

proposals about a deadline for Plaintiff to file and serve the Motion for Class

Certification in their joint status report to be filed by February 25, 2027. The Parties are ordered to appear for a

setting conference on March 4, 2027 at 10 am at which time the court will set a deadline for

Plaintiff to file and serve the Motion for Class Certification.

12.

Discovery conferences. Participation in an informal discovery

conference is not a prerequisite to filing a motion to compel further or other

discovery motion in Department 9.

However, the Court strongly encourages informal discovery conferences as

a more efficient and cost effective alternative to resolve discovery disputes without

unnecessary motion practice. The Court

will likely consider the parties' voluntary participation in an informal

discovery conference or other similar efforts when subsequently assessing a

party's request for discovery sanctions.

Any party may post a message on the electronic bulletin board to request

an informal discovery conference. The

Court will either reply to the message or issue a minute order setting the conference. A party's request for or voluntary participation in an informal discovery conference does not extend the deadline to file and serve a timely motion to compel further responses. If the parties wish, they may negotiate and stipulate to a mutually agreeable extension in writing. Because informal discovery conferences are informal, no court reporter or audio recording is permitted.

13.

Potential Related Cases. Counsel are ordered to file and serve a Notice of Related Case for any potentially related cases pursuant California Rule of court Rule 3.300, including any class action involving overlapping claims and any PAGA case involving the same representative plaintiff. This is a continuing obligation on both Plaintiffs and Defendants while this case is pending.

14.

Settlement.

File a Notice of Settlement on Judicial Council form CM-200, a mandatory form.

a. Consider using the form wage and hour

settlement agreements now available on the court's website at <https://www.lacourt.org/forms/all> – "Civil Forms" section.

With input and unanimous consensus from an Ad Hoc Wage and Hour

Committee, the court posted: (1) a form class action settlement

agreement, (2) a form class action/PAGA settlement

agreement, (3) and a form PAGA settlement agreement. Using these

forms should cut down on attorney negotiation time and reduce the lag time

between a successful mediation and execution of a long form agreement. Filing a motion that is based on a form

agreement and includes a redlined copy identifying modifications will also

expedite the court's review process and help reduce the current backlog on

hearings.

b. If settlement includes dismissal of

class action claims (such as a PAGA only settlement or an individual settlement), then Plaintiff

must comply with CRC 3.769 and 3.770 in order to obtain dismissal of class

claims. Do NOT use Judicial

Council Form Civ-110, Request for Dismissal.

Plaintiff

is ordered to download (1) the instant signed order from the Court's

website, (2) the minute order for today, and (3) the signed order authorizing

electronic service provider, to give formal notice of each of these to all

other parties, and to file proof of service of such within five (5) days.

IT IS SO ORDERED.

DATED: July 31, 2026

ELAINE

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Judge

of the Superior Court